

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Lyon	Team: Squad #11	CCRB Case #: 202308106	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/26/2023 10:39 PM, Saturday, 08/26/2023 11:20 PM, Sunday, 08/27/2023 12:25 AM, Sunday, 08/27/2023 3:15 AM	Location of Incident: 131-04 Meridian Road; 110th Precinct stationhouse	18 Mo. SOL 2/26/2025	Precinct: 110		
Date/Time CV Reported Sun, 08/27/2023 10:29 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Sun, 08/27/2023 10:29 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT David Verna	02790	953527	IAB

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Michael Garvey	07856	966074	110 DET
2. PO Dutch Schultz	13096	971675	QN SU CRT
3. SGT Ricardo Dorilus	00231	954749	110 PCT
4. CPT Rory Mangra	00000	935240	110 PCT
5. LT Theohari Koumniotes	00000	947138	110 PCT
6. PO David Harris	08543	952833	ESU K9
7. PO Robert Ragonesi	15839	952140	110 PCT
8. PO Jenna Jaworski	16224	971492	104 PCT
9. DTS Jose Ramos	03359	929563	TV UNIT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT David Verna	Abuse: At 131-04 Meridian Road in Queens, Sergeant David Verna seized § 87(2)(b) property.	A . Unable to Determine
B . SGT David Verna	Abuse: At 131-04 Meridian Road in Queens, Sergeant David Verna threatened to damage § 87(2)(b) property.	B . Unable to Determine
C . SGT David Verna	Abuse: At the 110th Precinct stationhouse, Sergeant David Verna searched the vehicle in which § 87(2)(b) was an occupant.	C . Substantiated
D . SGT David Verna	Abuse: At the 110th Precinct stationhouse, Sergeant David Verna searched the vehicle in which § 87(2)(b) was an occupant.	D . Within NYPD Guidelines
E . SGT David Verna	Abuse: At the 110th Precinct stationhouse, Sergeant David Verna searched the vehicle in which § 87(2)(b) was an occupant.	E . Substantiated
F . SGT David Verna	Abuse: At the 110th Precinct stationhouse, Sergeant David Verna damaged § 87(2)(b) property.	F . Substantiated
G . SGT David Verna	Abuse: At the 110th Precinct stationhouse, Sergeant David Verna did not process § 87(2)(b) complaint regarding officers.	G . Substantiated

Case Summary

On August 27, 2023, § 87(2)(b) filed this complaint in person at the 75th Precinct stationhouse, and via the CCRB's call processing system. This complaint was originally assigned to Investigator Theo Kaufman and reassigned to Supervising Investigator Kelly Lyon on May 10, 2024, upon Inv. Kaufman departure from the agency.

On August 26, 2023, at approximately 10:39 a.m., § 87(2)(b) was in Flushing Meadows Park in Queens with his wife, § 87(2)(b) and her cousin, § 87(2)(b) when there was a shooting within the park. § 87(2)(b) drove out of the park and called 911. Sgt. David Verna of the Internal Affairs Bureau and PO Dutch Schultz of Patrol Borough Queens North were working a detail in Flushing Meadows Park when they responded to the scene and encountered § 87(2)(b) driving out of the park. Sgt. Verna stopped § 87(2)(b) vehicle in the vicinity of 131-04 Meridian Road as officers investigated the shots fired. § 87(2)(b) was placed into custody after refusing to provide identification to be issued Vehicle and Traffic Law (VTL) summonses. Sgt. Verna made the decision to seize § 87(2)(b) vehicle (**Allegation A: Abuse of Authority, unable to determine**). § 87(2)(b) and § 87(2)(b) refused to exit the vehicle and Sgt. Verna instructed officers to tell § 87(2)(b) that they would break the windows of the vehicle if § 87(2)(b) and § 87(2)(b) did not exit (**Allegation B: Abuse of Authority, unable to determine**). § 87(2)(b) and § 87(2)(b) were taken back to the 110th Precinct stationhouse.

At the 110th Precinct stationhouse, at approximately 11:20 p.m., Sgt. Verna and PO Schultz conducted an inventory search of § 87(2)(b) vehicle (**Allegation C: Abuse of Authority, substantiated**). At approximately 12:25 a.m. on August 27, 2023, Sgt. Verna requested an Emergency Services Unit (ESU) canine officer, PO David Harris of ESU K-9, to the stationhouse to conduct a canine search of § 87(2)(b) vehicle (**Allegation D: Abuse of Authority, within NYPD guidelines**). Under Sgt. Verna's direction, PO Schultz and PO Michael Garvey of the 110th Precinct conducted a more thorough search of the vehicle (**Allegation E: Abuse of Authority: substantiated**) resulting in damage to the vehicle (**Allegation F: Abuse of Authority: substantiated**). At approximately 3:15 a.m., § 87(2)(b) and § 87(2)(b) were released from custody and Sgt. Verna refused to process a complaint for § 87(2)(b) (**Allegation G: Abuse of Authority: substantiated**).

§ 87(2)(b) received four summonses for tinted windows on his vehicle, and one for refusing to provide identification to officers (**BR 01**). § 87(2)(b) and § 87(2)(b) arrests for obstruction of governmental administration were voided by Sgt. Verna (**BR 02** and **BR 03**).

The investigation obtained 50 body-worn camera videos (**BR 04** and **BR 05**). Stationhouse footage was requested but could not be released due to a lack of authorization to release court records.

Findings and Recommendations

Allegation (A) Abuse of Authority: At 131-04 Meridian Road in Queens, Sergeant David Verna seized § 87(2)(b) property.

Allegation (B) Abuse of Authority: At 131-04 Meridian Road in Queens, Sergeant David Verna threatened to damage § 87(2)(b) property.

§ 87(2)(b) (**BR 06**) was at Flushing Meadows Park with § 87(2)(b) and § 87(2)(b) when there was a shooting in the park. § 87(2)(b) and § 87(2)(b) ran from the field and returned to the parking lot. § 87(2)(b) saw a group of individuals, including one who was trying to hide a gun in his pants. When he got to his vehicle, § 87(2)(b) called 911 to provide a description of the males that he saw, and that he saw them under the columns of a bridge near the parking lot. § 87(2)(b) began to drive away with § 87(2)(b) and § 87(2)(b). As he drove towards the park exit, a police vehicle came from the opposite direction. § 87(2)(b) rolled down his window and directed those officers towards the location where he saw the males. An unmarked police vehicle then blocked § 87(2)(b) exit from the parking lot, and PO Schultz and other officers approached § 87(2)(b). Officers asked § 87(2)(b) to exit the vehicle, and § 87(2)(b).

§ 87(2)(b) explained what he had seen and that he had called 911. Sgt. Verna told § 87(2)(b) that he had to remain on scene until they completed their investigation. Officers asked § 87(2)(b) to identify a suspect in the shooting, and § 87(2)(b) refused. Sgt. Verna asked § 87(2)(b) for his ID multiple times, and § 87(2)(b) refused, believing that he was not required to if he had not committed a crime. Sgt. Verna placed § 87(2)(b) in handcuffs and took § 87(2)(b) car keys and wallet from his pocket. Officers then approached § 87(2)(b) and § 87(2)(b) who were still seated in the vehicle. Officers took § 87(2)(b) and § 87(2)(b) out of the vehicle and handcuffed them. § 87(2)(b) later told § 87(2)(b) that an officer threatened to break the windows. § 87(2)(b) and § 87(2)(b) were all taken to the 110th Precinct stationhouse, along with his vehicle.

§ 87(2)(b) described himself as a Hispanic male who is 5'7" tall and weighs 200 pounds (BR 32).

§ 87(2)(b) (BR 07) stated that when the officers approached, they asked if § 87(2)(b) and § 87(2)(b) observed the shooter. § 87(2)(b) told them that they did not see the shooter and they all ran away after hearing the gunshots. § 87(2)(b) told § 87(2)(b) not to exit the vehicle as she did not know anything that he had not already told the officers. PO Schultz knocked hard on the window. § 87(2)(b) opened the window slightly and PO Schultz told her to get out of the vehicle as he tried opening the door to the vehicle. § 87(2)(b) got scared and opened the door. She did not understand the requests, as they were delivered in English which she does not speak. PO Schultz grabbed § 87(2)(b) arm and pulled her out of the vehicle. § 87(2)(b) was removed from the vehicle in the same way. Officers pushed § 87(2)(b) into a police vehicle. § 87(2)(b) and § 87(2)(b) were transported to the stationhouse where they remained for approximately four hours.

§ 87(2)(b) was unavailable to the investigation.

PO Schultz' first body-worn camera video (BR 08) shows at 1:00 minute, PO Schultz approaching § 87(2)(b) driver's window and asking whether he heard shots fired. § 87(2)(b) states he called the police. § 87(2)(b) does not immediately explain what happened and PO Schultz asks § 87(2)(b) whether he saw the gun and instructs him to step out of the vehicle. § 87(2)(b) complies and exits the vehicle. At 1:44 minutes, § 87(2)(b) says he heard gunshots and saw a gun. PO Schultz asks § 87(2)(b) whether he would get in the police vehicle and point someone out and § 87(2)(b) refuses. Sgt. Verna instructs officers to stay with § 87(2)(b) and he and PO Schultz return to their vehicle.

PO Schultz' second body-worn camera video (BR 09) opens with Sgt. Verna speaking with Lieutenant Theohari Koumniotes of the 110th Precinct. At 1:00 minute, PO Schultz and Sgt. Verna return to § 87(2)(b) who is speaking on the phone. At 2:25 minutes, PO Schultz and Sgt. Verna approach § 87(2)(b) vehicle and Sgt. Verna says that they will bring § 87(2)(b) back and his vehicle. At 2:50 minutes, Sgt. Verna points at § 87(2)(b) vehicle and says that the female in the vehicle might drive away. PO Schultz knocks on the driver's seat window and § 87(2)(b) opens the window slightly. PO Schultz asks how she is doing. § 87(2)(b) says something inaudible and PO Schultz remarks that she does not speak English. PO Schultz asks § 87(2)(b) to roll the window down and turn the vehicle off. PO Schultz walks over to where § 87(2)(b) is and at 5:25 minutes, Sgt. Verna approaches and tells § 87(2)(b) that he will ask him one more time if he would like to provide them with ID. § 87(2)(b) says no. Sgt. Verna tells officers to handcuff § 87(2)(b).

At 5:45 minutes, Sgt. Verna and PO Schultz walk to § 87(2)(b) vehicle and tell § 87(2)(b) and § 87(2)(b) to exit the vehicle. Sgt. Verna says that they will break the windows if they do not exit the car. § 87(2)(b) says, "Me no habla Ingles." At 6:40 minutes, PO Schultz orders § 87(2)(b) to leave the car. PO Schultz uses a translation app on his phone to play a statement to § 87(2)(b) in Spanish. At 7:18 minutes, PO Schultz asks Det. Jose Ramos who is also on scene of the NYPD TV Unit to come speak to § 87(2)(b) in Spanish. At 7:54 minutes, PO Schultz tells Det. Ramos to tell § 87(2)(b) that they are going to break the windows if she

does not get out of the car. Det. Ramos translates and tells § 87(2)(b) to get out of the vehicle. At 8:09 minutes, § 87(2)(b) opens the car door, leans out of the vehicle but does not get fully out. At 8:31 minutes, Sgt. Verna grabs § 87(2)(b) right arm and pulls her out of the vehicle. PO Schultz turns § 87(2)(b) around to face the vehicle and handcuffs her with the help of Sgt Verna. At 8:44 minutes, § 87(2)(b) is outside of the vehicle and being escorted to the rear of the vehicle by PO Robert Ragonese of the 110th Precinct. PO Schultz passes a pair of handcuffs to PO Ragonese and walks away. At 9:07 minutes, PO Schultz takes § 87(2)(b) car keys from an officer and walks back to the vehicle where PO Jenna Jaworski of Patrol Borough Queens North is seen handcuffing § 87(2)(b). At 14:40 minutes, PO Schultz transports § 87(2)(b) vehicle to the 110th Precinct stationhouse.

Sgt. Verna's body-worn camera (BR 33) shows at 3:25 minutes, Sgt. Verna riding in the police vehicle when the radio dispatcher informs him that the call back is going to no answer, Sgt. Verna asks to be kept advised. Another officer goes over the radio and informs Sgt. Verna that the caller hung up on him.

Sgt. Verna (BR 10) was with PO Schultz when they received a call for shots fired within Flushing Meadows Park in the parking lot area. Within a minute, they arrived on scene and observed a black sedan leaving the area of the confirmed shots fired, driving over 25 miles per hour through the stop sign and cutting in front of Sgt. Verna's vehicle. Sgt. Verna had the impression that this vehicle was fleeing the scene. An additional unmarked vehicle approached the same intersection and stopped in front of the sedan. Sgt. Verna and PO Schultz pulled the vehicle over. The windows were excessively tinted, and Sgt. Verna could not see who was inside. Through the front windshield, Sgt. Verna observed all occupants looking around and making a lot of movements with their hands. PO Schultz spoke to the driver, § 87(2)(b) and asked him to step out of the vehicle. After a couple of requests, Sgt. Verna also told § 87(2)(b) to exit, which he did. Sgt. Verna had received a description from 911 Central dispatch, describing a male wearing blue. § 87(2)(b) was wearing blue shorts and a white shirt. The dispatcher also mentioned a blue hoodie and black pants. Sgt. Verna asked § 87(2)(b) if he was related to the incident. § 87(2)(b) told Sgt. Verna that he was the 911 caller. Sgt. Verna directed his officers to stay with § 87(2)(b) while he spoke with officers who had apprehended another individual. Central dispatch then gave a description of a black vehicle. § 87(2)(b) had been driving a black vehicle when Sgt. Verna stopped him. There were multiple descriptions being given over the radio, leading Sgt. Verna to believe that there were multiple people involved in the incident.

Sgt. Verna conferred with Lieutenant Koumniotes about § 87(2)(b) possible involvement, and said he intended to bring § 87(2)(b) back to the stationhouse for investigation, and for his VTL infractions. The lieutenant agreed, and Sgt. Verna returned to § 87(2)(b) to ask him if he had identification. § 87(2)(b) refused to provide identification. Sgt. Verna got on the radio and asked central to call back and speak to the 911 caller. § 87(2)(b) was standing in front of Sgt. Verna, and concurrently, a police dispatcher was telling Sgt. Verna that she was on the phone with the caller. Sgt. Verna decided that § 87(2)(b) was not the 911 caller. After some time, Sgt. Verna again asked § 87(2)(b) if he could provide his driver's license. § 87(2)(b) refused, and Sgt. Verna directed his officers to apprehend him, to bring him back to the stationhouse and identify him. § 87(2)(b) was placed in handcuffs.

Sgt. Verna decided to take § 87(2)(b) vehicle to the stationhouse because § 87(2)(b) was operating the vehicle when it stopped. § 87(2)(b) had, at this point, moved from the front passenger's seat to the driver's seat. § 87(2)(b) locked the doors of the vehicle. By remaining inside the vehicle, and preventing Sgt. Verna from taking possession of that vehicle, § 87(2)(b) and § 87(2)(b) were obstructing governmental administration. Sgt. Verna told § 87(2)(b) to get out of the vehicle and said that they would break the glass if § 87(2)(b) and § 87(2)(b) did not get out of the vehicle. Sgt. Verna, PO Schultz, and another officer repeatedly told § 87(2)(b) and § 87(2)(b) to get out of the vehicle, in English and in Spanish. § 87(2)(b) continually refused to get out of the vehicle. Eventually, § 87(2)(b) complied and opened the door but did not fully

§ 87(2)(g) Therefore, it is recommended that **Allegation B** be closed as *unable to determine*.

Allegation (C) Abuse of Authority: At the 110th Precinct stationhouse, Sergeant David Verna searched the vehicle in which § 87(2)(b) was an occupant.

Sgt. Verna's third body-worn camera video (BR 15) shows at 1:00 minute, Sgt. Verna approaching § 87(2)(b) vehicle and putting on gloves. Sgt. Verna proceeds to search the vehicle assisted by PO Schultz. At 1:25 minutes, Sgt. Verna leans into the rear driver's side of the vehicle and there is a large speaker on the backseat. At 2:45 minutes, Sgt. Verna enters the trunk which contains various power tools. Sgt. Verna removes the property and places it on the ground and at 4:37 minutes returns the property to the trunk. At 5:15 minutes, Sgt. Verna looks at the front passenger seat and there is a wallet and a video gaming device. At 8:55 minutes, Sgt. Verna and PO Schultz look under the hood of the vehicle.

Sgt. Verna stated (BR 10) that at the stationhouse he and PO Schultz conducted an inventory search of the vehicle, looking in the trunk, passenger compartments and engine compartment. They found no valuable property or anything that they had to take possession of.

In *People v. Padilla*, 21 N.Y.3d 268 (2013) (BR 16) the court found that an inventory search of a vehicle, following a lawful arrest of a driver of a vehicle that is required to be impounded, was permissible as the search was in accordance with police procedure, resulted in a meaningful inventory list, and the primary objective was to preserve the property of the defendant, protect the police from a claim of lost property, and protect police and others from dangerous instruments and must not be a ruse for a general rummaging in order to discover incriminating evidence. While incriminating evidence may be a consequence of an inventory search, it should not be its purpose.

NYPD Patrol Guide procedure 218-13 (BR 17) states that whenever property comes into the custody of the Department, all valuables inventoried from a vehicle must be removed and invoiced in a property voucher.

§ 87(2)(g) Sgt. Verna's body-worn camera shows that the vehicle contained valuables such as a video gaming device, a speaker, and power tools and nothing was removed or vouchered, § 87(2)(b) Therefore, it is recommended that **Allegation C** be *substantiated*.

Allegation (D) Abuse of Authority: At the 110th Precinct stationhouse, Sergeant David Verna searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (E) Abuse of Authority: At the 110th Precinct stationhouse, Sergeant David Verna searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (F) Abuse of Authority: At the 110th Precinct stationhouse, Sergeant David Verna damaged § 87(2)(b) property.

§ 87(2)(b) stated (BR 06) that he was released at approximately 3:15 a.m. with five summonses for tinted windows and refusing to provide his identification. § 87(2)(b) went back to his vehicle and saw that everything was broken, and his dash camera had been disconnected. § 87(2)(b) noted that the vehicle was not damaged prior to the officers' search of the vehicle, but when § 87(2)(b) returned to the vehicle, it was damaged. There were three big holes on the top of the dashboard, the air vents were broken, the center console was broken, the shift stick was broken and disconnected. There was also a hole in the back seat of the vehicle, and the air ventilation assembly which is underneath the glove box.

§ 87(2)(b) stated (BR 07) that when she was released from custody and returned to the vehicle, she noticed that parts of the interior of her vehicle were broken. The front panel/dashboard near the air vents within the vehicle was broken as if a knife was used to open it, revealing a gap. The plastic center console where the gear shifter is, was also pried open the same way. The doors to the vehicle had the same kind of damage. The damage total was \$2,708.00.

Sgt. Verna stated (BR 10) that due to the possible involvement of § 87(2)(b) in the

shooting, he requested an ESU canine to come and sniff the vehicle for possible concealed firearms. Sometime after midnight, the ESU canine unit arrived. Sgt. Verna briefed the canine officer, PO Harris, and the 110th Precinct Detective Squad on the circumstances. They determined that this situation warranted a canine search of the vehicle. The canine sniffed the car and there was a positive hit, indicating that there was a firearm concealed in the car, or that at one point there was a firearm in that vehicle. This authorized a more thorough search of the vehicle, allowing officers to remove panels, look behind the dashboard, behind the vents, and underneath carpet to search for a possible firearm in the vehicle. Sgt. Verna conducted said search of the vehicle, along with PO Schultz. Sgt. Verna did not recall if any other officers assisted in searching the vehicle. They did not find anything in the vehicle. Sgt. Verna believed that this indicated that at one point there was a firearm in the vehicle.

PO Harris' statement (**BR 18**) was consistent with his first body-worn camera video (**BR 19**) which shows at 1:00 minute, PO Harris announcing he is going to do an exterior search of the vehicle. At 1:30 minutes, PO Harris says, "trigger" and his canine, Coughlin, sniffs the outside of the driver's side of the vehicle and sits next to the driver's side door. At 2:00 minutes, PO Harris opens the rear driver's side door and says, "trigger," letting Coughlin inside the vehicle. Coughlin climbs into the front passenger seat and sits by the center console. At 2:25 minutes, PO Harris says, "Show me," and Coughlin reacts to the command by tapping the center console with his front paws. At 3:00 minutes, PO Harris explains to the officers on scene that there was a positive indication on the exterior and that Coughlin indicated at the center console which means that at one point there was an explosive material inside the vehicle.

PO Harris stated (**BR 18**) that Coughlin most likely indicated the firearm on either black powder or smokeless powder. Coughlin is certified through New York State as patrol certified and explosive certified, and certified nationally through the Bureau of Alcohol, Tobacco, Firearms and Explosives and that National Odor Recognition Test. Coughlin is certified in detecting black powder, smokeless powder, detonating cord, C4, TNT, etc. Coughlin has been trained in detecting explosives for four years. PO Harris explained that had an officer transported the vehicle from the scene of the alleged shooting to the stationhouse, the officer's firearm would not have been in the vehicle long enough to give a positive indication. PO Harris added that the abruptness of Coughlin's behavior change, and the quickness of his indication indicated that it was a very strong and powerful odor that would not come from an officer sitting in the vehicle for a couple of minutes. PO Harris also explained that a positive indication could come from a firearm that had simply been present or fired recently.

PO Schultz' statement (**BR 20**) was consistent with his fourth body-worn camera video (**BR 21**) which shows him conducting an additional search of the vehicle. At 1:04 minutes, PO Schultz enters the front passenger seat of § 87(2)(b) vehicle. PO Garvey enters the driver's seat. At 1:50 minutes, PO Schultz uses a screwdriver on the dashboard. At 2:30 minutes, PO Schultz and PO Garvey pry the top of the center console off, and PO Schultz examines the wiring inside. At 3:40 minutes, PO Garvey says that the vents look chewed up, and he and PO Schultz pry the vents off the vehicle. At 6:15 minutes, PO Schultz opens the glove compartment and looks through it. At 7:11 minutes, PO Schultz and PO Garvey remove part of the vehicle beneath the steering wheel. At 10:40 minutes, PO Schultz removes a panel underneath and to the right of the shift-stick and reaches his hand inside. A loose wire is later revealed. At 12:11 minutes, PO Schultz states that he feels like something is up with "that e-brake because it doesn't work, and it has that screw through it." PO Schultz continues to move around the shift-stick and reach his hand in the areas behind it. At 14:11 minutes, PO Schultz moves to the back of the car and lifts the cushion of the back right seat. PO Schultz looks in the vents facing the back seats and removes panel pieces. At 17:10 minutes, PO Schultz removes the headrest of the front passenger seat and pulls both sides apart. At 18:50 minutes, PO Schultz pulls down the armrest and storage area between the back seats. PO Schultz removes the plastic paneling and searches the interior.

In People v. Devone, 15 N.Y.3d 106 (2010) (**BR 22**) the court found that law enforcement

need only meet a lesser standard before conducting a canine sniff of the exterior of a lawfully stopped vehicle. Given that diminished expectation of privacy, coupled with the fact that canine sniffs are far less intrusive than the search of a residence and provide "significant utility to law enforcement authorities," application of the founded suspicion standard in these cases is appropriate.

NYPD Patrol Guide procedure 221-18 (**BR 23**) states that the Department's canine team may be utilized to locate hidden implements of crime. Officers are to avoid contamination of the scene with human scent created by the presence of unnecessary persons, including police personnel, when searching a building or tracking.

In People v. Perez, 88 A.D.3d 1016 (2011) (**BR 24**) the court found that although a canine sniff indicating the presence of narcotics may be used to establish probable cause for the issuance of a warrant or to permit the immediate search of a readily mobile vehicle, here, the defendant's car was impounded in a secure location and there was ample time for the law enforcement officials to secure a warrant in order to make this significant intrusion.

In People v. Galak, 81 N.Y.2d 463 (1993) (**BR 25**) the court found that state actors may search a vehicle without a warrant when they have probable cause to believe that evidence or contraband will be found there. Elimination of the warrant requirement in these cases has been justified both by the mobility of vehicles--and the concomitant likelihood that evidence or contraband will disappear if the search is delayed--and by the diminished expectation of privacy held by those who occupy motor vehicles.

In Onderdonk v. State, 648 N.Y.S.2d 214 (1996) (**BR 14**) the court found that officers may damage property only if it is reasonably necessary to carry out their duties.

§ 87(2)(g) § 87(2)(b) vehicle matched the description of a black vehicle, and it was in the vicinity of the shooting near the time of occurrence, § 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed *within NYPD guidelines*.

§ 87(2)(g)
Therefore, recommended that **Allegations E and F** be *substantiated*.

Allegation (G) Abuse of Authority: Sergeant David Verna did not process § 87(2)(b) complaint regarding officers.

§ 87(2)(b) (**BR 06**) went back into the stationhouse lobby at approximately 3:15 a.m. and asked someone at the desk to file a complaint. A Black male officer wearing a dark blue top, identified by the investigation as Sgt. Verna then directed § 87(2)(b) outside and showed him a poster for the CCRB. § 87(2)(b) took a photo of the poster. Nobody took his complaint at the stationhouse. Later that day, § 87(2)(b) went to the 75th Precinct stationhouse and filed this complaint in person.

Sgt. Verna (**BR 10**) stated that § 87(2)(b) was released from the precinct along with § 87(2)(b) and § 87(2)(b). When they left the stationhouse, § 87(2)(b) was screaming outside about his vehicle and he did not speak to Sgt. Verna at the time, and Sgt. Verna had no further interaction with § 87(2)(b). Sgt. Verna (**BR 26**) stated he was familiar with the 110th Precinct stationhouse and aware of the CCRB informational sign but did not know where it was within the stationhouse. Sgt. Verna never pointed out the sign to § 87(2)(b) and § 87(2)(b) never asked him to file a complaint against an officer. During his interview, Sgt. Verna was presented with PO Schultz' fifth body-worn camera video (**BR 27**) in which Sgt. Verna identified himself behind the

desk wearing a blue t-shirt.

PO Schultz stated (BR 20) that after § 87(2)(b) was released, he spoke with Sgt. Verna and asked him to file a complaint. Sgt. Verna told § 87(2)(b) how to file a CCRB complaint and showed him a poster on the wall of the precinct which contains a QR code, which is how precincts direct people to file complaints.

NYPD Patrol Guide procedure 207-28 (BR 28) states that complaints of misconduct by a uniformed member may be made at any patrol precinct. To process civilian complaints made in person, the member of service receiving the complaint is to interview the complainant and give the complainant the first copy of the Civilian Complaint Report form to be prepared in the complainant's own handwriting.

§ 87(2)(g)

Therefore, it is recommended that Allegation G be *substantiated*.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 29).
- Sgt. Verna has been a member of service for 11 years and named a subject in six additional CCRB complaints and 11 allegations, one of which was substantiated.
 - 202100995 involved a substantiated allegation of forcible removal to hospital. The Board recommended formalized training, and the NYPD has yet to impose discipline.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming damage to his vehicle's dashboard, center console, arm rest console, air filter blower motor, and rear leather seat, and seeking \$7,787 dollars as redress (BR 30). There is no 50-H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 11

Investigator:	Kelly Lyon	SI Kelly Lyon	12/04/ 2024
	_____ Signature	_____ Print Title & Name	_____ Date

Squad Leader:	Edwin Pena	IM Edwin Pena	12/04/24
	_____ Signature	_____ Print Title & Name	_____ Date

Reviewer:	_____	_____	_____
	_____ Signature	_____ Print Title & Name	_____ Date